Ask an organisation to stop using your data but keep it (right to restriction)

A letter to have your personal data kept but not used, for example while its accuracy is checked or because you need it for a legal claim.

FOR
Anyone in the EU, Iceland, Liechtenstein or Norway who wants to use this right under the GDPR (the EU General Data Protection Regulation), with notes for Italy and Germany. Also for the data protection officer or small-business owner who receives such a letter.

NOT COVERED
Court orders to preserve evidence, which follow national procedural law; the UK and Switzerland. The data protection laws of the states other than Bavaria were not read.

LAW AS OF
GDPR (Regulation (EU) 2016/679) as published on EUR-Lex, read 7 Nov 2026; EDPB Guidelines 01/2022 on the right of access, version 2.1 (adopted 28 March 2023, minor corrections 30 May 2024); Regulation (EEC, Euratom) 1182/71, Article 3; Italian Data Protection Code (Legislative Decree 196/2003) as on Normattiva (updated to the act published on 19 Feb 2026), read 4 to 8 Nov 2026; Garante complaint page (docweb 4535524), read 7 Nov 2026; BDSG as published on gesetze-im-internet.de, last amended by the Act of 12 May 2026, read 7 Nov 2026; Bavarian Data Protection Act (BayDSG) Articles 15 and 18, text in force from 1 Aug 2025 (gesetze-bayern.de), BDSG section 40(2) and the BfDI pages on the state authorities, read 8 Nov 2026; Court of Justice judgment in Case C-132/21 of 12 January 2023 (EUR-Lex), read 8 Nov 2026

VERSION
1.1, 8 November 2026

What this right is

Restriction means the organisation keeps your data but stops using it, for a time or for good. It is useful when you want the data kept, for example as evidence, but not used. You can ask for it where one of four situations applies (Article 18(1)):

SITUATION	THE ARTICLE'S WORDS
(a) You say the data is wrong	*"the accuracy of the personal data is contested by the data subject, for a period enabling the controller to verify the accuracy of the personal data"*
(b) The use is unlawful, but you want the data kept	*"the processing is unlawful and the data subject opposes the erasure of the personal data and requests the restriction of their use instead"*
(c) They no longer need it, but you do for a legal claim	*"the controller no longer needs the personal data for the purposes of the processing, but they are required by the data subject for the establishment, exercise or defence of legal claims"*
(d) You have objected and they are checking	*"the data subject has objected to processing pursuant to Article 21(1) pending the verification whether the legitimate grounds of the controller override those of the data subject"*

While the data is restricted, *"with the exception of storage"*, it may be used only with your consent, for legal claims, to protect another person's rights, or for an important public interest (Article 18(2)). You *"shall be informed by the controller before the restriction of processing is lifted"* (Article 18(3)). The organisation tells recipients of the data about the restriction unless impossible or disproportionate (Article 19).

The GDPR's introductory explanations (its *recitals*) say that ways to restrict data *"could include, inter alia, temporarily moving the selected data to another processing system, making the selected personal data unavailable to users, or*

temporarily removing published data from a website" (recital 67).

If the data might be deleted soon (for example camera footage kept for a few days), send the request at once and say so in the subject line.

Where to send it

Send it to the organisation that decides why and how your data is used. The law calls it the *controller*, and calls you the *data subject*. Its contact details are in its privacy notice. Many organisations have a data protection officer: an expert, inside or outside the organisation, whom people can contact about their data. The organisation must *"publish the contact details of the data protection officer"* (Article 37(7)), and *"Data subjects may contact the data protection officer with regard to all issues related to processing of their personal data and to the exercise of their rights"* (Article 38(4)). Look for the contact in the privacy notice, often under "data protection officer", "DPO" or "privacy contact".

Use a channel that keeps a record: e-mail, the organisation's own form, or registered post. Keep a copy and note the date it arrived, because the time limit starts then. The organisation *"shall facilitate the exercise of data subject rights"* (Article 12(2)). If you write by e-mail, the answer comes by e-mail where possible, unless you ask for another way (Article 12(3)).

How long the organisation has

The organisation must tell you what it has done *"without undue delay and in any event within one month of receipt of the request"*. It may take *"two further months where necessary, taking into account the complexity and number of the requests"*, but it must tell you so within the first month and give the reasons (Article 12(3)).

The European Data Protection Board (EDPB, the body of all EU data protection regulators) counts the month under Regulation 1182/71: a request received on 5 March is due *"until and including 5 April"*; if the last day *"falls on a weekend or a public holiday, the controller has until the next working day to respond"* (EDPB Guidelines 01/2022, paras 160 to 161, pp. 50 to 51; Regulation 1182/71, Article 3). Fino's Response timeline counts the dates for you.

If no answer comes, or the answer is a refusal

If the organisation decides not to act, it must tell you within one month *"the reasons for not taking action"* and *"the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy"* (Article 12(4)).

Complain to a regulator. A *supervisory authority* is the public data protection regulator. You may complain *"in particular in the Member State of his or her habitual residence, place of work or place of the alleged infringement"* (Article 77). Fino's Which regulator? tool and the EDPB list of member authorities give the addresses. Attach your letter, proof of the date it arrived and any reply.

Go to court. You may also bring a claim before the courts of the country where the organisation has an establishment or, unless the organisation is a public authority using its public powers, where you normally live (Article 79). The Court of Justice ruled that a complaint to a regulator and a court action against its decision (Articles 77(1) and 78(1)), on the one hand, and a court claim against the organisation (Article 79(1)), on the other, may be used *"concurrently with and independently of each other"*. It is for each Member State *"to lay down detailed rules as regards the relationship between those remedies in order to ensure the effective protection of the rights guaranteed by that regulation and the consistent and homogeneous application of its provisions, as well as the right to an effective remedy before a court or tribunal"* (Article 47 of the Charter of Fundamental Rights) (Case C-132/21, ruling). For Italy, see the rules below; whether they fit that ruling is not settled in the sources read for this document. For Germany, the section below gives the competent court.

The letter

Fill in the parts in braces, delete the lines that do not apply, and keep a copy. For the reference, use the customer number or account e-mail the organisation knows you by: it helps them find your data without asking for more.

Describe the data precisely, for example: the video recordings of me at your shop in a named street, on a given date, between two times. Keep the reasons (a) to (d) that apply and delete the others.

YOUR NAME, YOUR ADDRESS, YOUR E-MAIL

ORGANISATION NAME, DATA PROTECTION OFFICER OR PRIVACY CONTACT, ADDRESS OR E-MAIL

DATE

Subject: Request to restrict the use of my personal data (Article 18 GDPR)

I am writing to use my right to restriction of processing under Article 18 of the General Data Protection Regulation (GDPR).

Please restrict the processing of DATA CONCERNED, PLACE, DATE AND TIME.

I make this request because (Article 18(1) GDPR):

(a) I contest the accuracy of this data: WHAT IS WRONG;

(b) the processing is unlawful, and I ask for restriction instead of erasure;

(c) you no longer need the data, but I need it to establish, exercise or defend a legal claim: SHORT DESCRIPTION;

(d) I have objected to the processing under Article 21(1) GDPR, and you are checking whether your grounds override mine.

To help you find my data: CUSTOMER NUMBER OR ACCOUNT E-MAIL.

Please keep the data, and do not use it other than as Article 18(2) GDPR allows. Please tell me before you lift the restriction (Article 18(3) GDPR), and tell every recipient of the data about the restriction (Article 19 GDPR).

Please reply within one month of receiving this letter, as Article 12(3) GDPR requires. If you need more time, please tell me within that month and give the reasons. If you decide not to act on my request, please tell me why (Article 12(4) GDPR).

If I receive no answer, or an incomplete one, I may complain to the data protection authority (Article 77 GDPR) or go to court (Article 79 GDPR).

Yours faithfully,

YOUR NAME

How the organisation handles it: Handling data requests: procedure and register. Its replies: confirm receipt, confirm identity, extend the time limit, refuse or charge a fee, the answer.

What the organisation may ask or refuse

Article 12 allows three things. **Check who you are**, if it has *"reasonable doubts concerning the identity of the natural person making the request"*, and then only for *"additional information necessary to confirm the identity"* (Article 12(6)). **Refuse, or charge a fee**, only if a request is *"manifestly unfounded or excessive, in particular because of their repetitive character"*; the organisation *"shall bear the burden of demonstrating"* this. Otherwise the answer is *"free of charge"* (Article 12(5)). **Take longer**: up to two further months for complex or numerous requests, if it tells you within the first month and gives reasons (Article 12(3)). The law of a Member State may also limit a right (Article 23): see Italy and Germany below.

Fined, and Article 18 among the breaches

Lidl Italia S.r.l., Garante (Italy), 14 May 2026, €43,000: a customer asked, within hours of an incident, for access to the security-camera (CCTV) images of him and for their retention; the company insisted on its own form and then deleted the footage; Articles 12(2), 12(3), 15(1) and 18(1)(c) among the breaches (2026/IT/070). Each fine covers all the breaches found, not this article alone. Amounts, dates and regulators as on Fino's decision pages.

Decision data come from enforcementtracker.com (provided by CMS) and GDPRhub (noyb), under CC BY-NC-SA 4.0 (https://creativecommons.org/licenses/by-nc-sa/4.0/), and from regulators' own publications; each decision page on Fino carries the details.

ITALY

Italy

Complaining in Italy

The Italian regulator is the Garante per la protezione dei dati personali (the Garante). A complaint (*reclamo*) is made under Article 77 GDPR and Articles 140-bis to 143 of the Italian Data Protection Code (*Codice in materia di protezione dei dati personali*, Legislative Decree 196/2003; here, the Code). The Garante says it is free: *"La presentazione del reclamo è gratuita"* (Garante, how to act). It can be sent by certified e-mail (PEC, *posta elettronica certificata*) to protocollo@pec.gpdp.it, by registered post with return receipt, or by hand, to Piazza Venezia 11, 00187 Rome. It is signed with a certified or digital signature, or by hand with a copy of a valid identity document attached (Garante, complaint model and instructions).

The complaint sets out the facts, the rules thought to be breached, the measures asked for and who the controller is (Code, Article 142). The Garante *"decide il reclamo entro nove mesi dalla data di presentazione"* (decides within nine months) and reports on progress within three months; with reasons given, it may take twelve months (Code, Article 143(3)).

Complaint or court. The person may complain to the Garante or go to court. A complaint *"non può essere proposto"* (cannot be made) if a court already has the same matter between the same parties; and once a complaint is made, a court claim between the same parties on the same matter is not admissible, except as Article 10(4) of Legislative Decree 150/2011 provides (Code, Article 140-bis). Court claims go to the ordinary courts (Code, Article 152).

When Italian law limits the right

The rights in Articles 15 to 22 GDPR cannot be used, by request or by complaint, where this could cause *"un pregiudizio effettivo e concreto"* (an actual and concrete harm) to interests the Code lists: anti-money-laundering rules; support for victims of extortion; parliamentary committees of inquiry; certain public monetary and financial supervision; defence investigations or the exercise of a right in court; the confidentiality of a whistleblower's identity; tax interests and the fight against tax evasion (Code, Article 2-undecies(1)). In most of these cases the controller must send a reasoned notice without delay, unless the notice would defeat the purpose of the limit, and the rights may then be exercised through the Garante (Article 2-undecies(3)).

Rights of a person who has died

For a deceased person, the rights in Articles 15 to 22 *"possono essere esercitati da chi ha un interesse proprio, o agisce a tutela dell'interessato, in qualità di suo mandatario, o per ragioni familiari meritevoli di protezione"* (may be exercised by someone with an interest of their own, acting to protect the person as their agent, or for family reasons worth protecting). This is excluded where a law says so, or where the person forbade it in writing to the controller, the latter only for information society services offered directly to them. Such a ban cannot harm third parties' property rights arising from the death or their right to defend their interests in court (Code, Article 2-terdecies).

If you write about a deceased person, add a line on your link to them (heir, agent, family member) and attach proof.

GERMANY

Germany

Complaining in Germany

Germany has a data protection authority in each federal state (*Land*), and two in Bavaria: the Bavarian State Office for Data Protection Supervision (*Landesamt für Datenschutzaufsicht*, in Ansbach) for companies and other private bodies, and the Bavarian State Commissioner for Data Protection (*Landesbeauftragter für den Datenschutz*) for Bavarian public bodies, municipalities included (Article 15(1) and Article 18(1) and (2) of the Bavarian Data Protection Act, BayDSG; BfDI page on Bavaria). For private companies it is in principle the authority of the state where the company is established: *"Die nach Landesrecht zuständigen Behörden überwachen … bei den nichtöffentlichen Stellen die Anwendung der Vorschriften über den Datenschutz"* (section 40(1) BDSG; the BDSG is the Federal Data Protection Act, *Bundesdatenschutzgesetz*). If the company has several establishments in Germany, the authority is the one of its main establishment, as the GDPR defines it (section 40(2) BDSG; Article 4(16)). According to the BfDI, the state authority supervises the state and municipal bodies of its state: *"Neben der Aufsicht über die Landes- und Kommunalbehörden wird auch der nicht-öffentliche Bereich grundsätzlich von den Landesdatenschutzbehörden betreut"* (besides supervising state and municipal authorities, the state data protection authorities in principle also cover the private sector) (BfDI: contact to the state authorities), which lists them with their addresses. Federal public bodies, and telecommunications companies within the limits of section 9, are supervised by the Federal Commissioner for Data Protection and Freedom of Information (BfDI) (section 9(1) BDSG). An authority that receives a complaint for which another authority is competent passes it on (section 19(2) BDSG).

Court. A claim against a company may be brought at the court of a place where it has an establishment, or where the person normally lives (section 44(1) BDSG). This does not apply to claims against authorities using their public powers (section 44(2)).

When German law limits the right

Section 35 BDSG makes restriction take the place of erasure in some cases (see the erasure letter in this set) (section 35 BDSG). Section 27(2) limits the right for research and statistics where it is likely to make those purposes impossible or seriously impair them, and the limit is necessary for those research or statistics purposes (section 27(2) BDSG). For archiving in the public interest, the rights in Article 18(1)(a), (b) and (d) do not apply to the extent that they are likely to make those purposes impossible or seriously impair them, and the exceptions are necessary for those purposes (section 28(4) BDSG).

Sources

GDPR, Regulation (EU) 2016/679 (EUR-Lex) • Used for: Articles 12, 15 to 22, 37, 38, 77 and 79, recitals; Fino's copy of each article is linked in the text

EDPB Guidelines 01/2022 on data subject rights: right of access, version 2.1 • Used for: How regulators read the right of access, time limits and identity checks (paragraphs and pages cited)

Regulation (EEC, Euratom) 1182/71 on periods, dates and time limits (EUR-Lex) • Used for: How a period in months is counted

Fino: Response timeline • Used for: Counting the one-month deadline

EDPB: member authorities • Used for: Addresses of the regulators in every EEA country

Italian Data Protection Code, Legislative Decree 196/2003 (Normattiva) • Used for: Articles 2-undecies, 2-terdecies, 140-bis to 143 and 152

Garante per la protezione dei dati personali: complaint model and instructions (docweb 4535524) • Used for: How to complain in Italy

Garante: how to act to protect your personal data • Used for: Complaint is free; complaint or court

Federal Data Protection Act, BDSG (gesetze-im-internet.de) • Used for: Sections 9, 19, 40 and 44 (regulators and courts) and the limits of the right in Germany

BfDI: list of the German state data protection authorities • Used for: Addresses of the regulators in Germany

Bavarian Data Protection Act (BayDSG), Articles 15 and 18 (gesetze-bayern.de) • Used for: The two Bavarian supervisory authorities: the State Commissioner for public bodies (Article 15(1)), the State Office in Ansbach for private bodies (Article 18(1) and (2))

BfDI: page on the Bavarian data protection authorities • Used for: Which Bavarian authority supervises whom, and the addresses

Court of Justice, Case C-132/21, judgment of 12 January 2023 (EUR-Lex) • Used for: Complaint and court claim may be used concurrently and independently; national law lays down how they relate